

# Braxby Cycles Ltd — terms and conditions of sale

*Version 6. In force from 1 January 2026. Supersedes version 5.*

## 1. About these terms

1.1 These terms apply to every contract for the sale of goods and services between Braxby Cycles Ltd ("we", "us") and the customer ("you"), whether placed through [www.braxbycycles.example](http://www.braxbycycles.example), at the trade counter, or by email.

1.2 Nothing in these terms limits or excludes your statutory rights as a consumer. Where a term in this document is less favourable to you than a right you hold by statute, the statutory right applies and the term does not.

1.3 Where you are buying in the course of a business under a trade account, the trade account terms apply in addition to these terms, and where the two conflict the trade account terms prevail.

## 2. Placing an order

2.1 Your order is an offer to buy. No contract is formed when you place the order or when you receive the automatic acknowledgement. A contract is formed only when we send a dispatch confirmation, and only for the goods named in that confirmation.

2.2 We may decline an order without giving a reason. In practice we decline for three reasons: the item is out of stock, the price shown was wrong, or the delivery address is outside the territories in clause 4.1.

2.3 A special-order item is ordered in against your order and is identified as such on the product page before you buy. A special-order item cannot be cancelled once we have placed the order with our supplier.

## 3. Prices and payment

3.1 The price is the price shown on the product page at the moment the order is placed, and includes VAT where VAT applies. Delivery is charged in addition and is shown separately at checkout.

3.2 If the price shown was obviously wrong, and the error is one you could reasonably have recognised, we may cancel the order and refund you in full rather than supply at that price.

3.3 Payment is taken at the point of order. Where an order is held for the verification described in clause 4.6, payment is taken and refunded in full if the order is subsequently cancelled.

3.4 Workshop labour is charged at the rates on the workshop price list current on the date the job is booked in, and is quoted in writing before work begins.

## 4. Delivery, risk and title

4.1 We deliver to addresses in the United Kingdom, the Republic of Ireland and the European Union. We do not deliver outside those territories.

4.2 Delivery timescales are estimates and are not of the essence of the contract. Where delivery is materially delayed you may cancel the order and receive a full refund, including the delivery charge paid.

4.3 Risk in the goods passes to you on delivery to the address you gave, or on collection from our workshop.

4.4 Title in the goods passes to you when we have received payment in full.

4.5 Damage in transit must be notified within three working days of delivery. After that period the carrier will not accept a claim and the matter is dealt with under clause 6 instead.

4.6 Orders over £400 delivered to an address other than the billing address of the payment card are held for a verification call, which we make within one working day.

## **5. Cancellation and returns**

5.1 The Customer may cancel and return any unused Goods within thirty (30) days of delivery and receive a refund in full. The Goods must be unfitted, in resaleable condition and in their original packaging.

5.2 The thirty day period runs from the date of delivery. Where a carrier has recorded a delivery date, that record is determinative.

5.3 The following are excluded from clause 5.1: goods cut to length; opened liquids including tubeless sealant; special-order items; gift vouchers; and goods returned without packaging that forms part of the saleable product.

5.4 We refund the outbound standard delivery charge where the whole order is returned. We do not refund any premium paid for an expedited service, and we do not refund the outbound charge on a partial return.

5.5 Refunds are made to the original payment method within five working days of the goods arriving at our returns unit.

## **6. Faulty goods**

6.1 Goods that are faulty are dealt with under our warranty policy and not under clause 5. Carriage on a faulty return is at our cost in both directions, and the thirty day period in clause 5.1 does not apply.

6.2 Our warranty terms by product category, and the exclusions that apply to consumables, are set out in the warranty policy, which forms part of these terms.

## **7. Our liability**

7.1 We do not exclude or limit our liability for death or personal injury caused by our negligence, for fraud, or for any liability that cannot be excluded by law.

7.2 Subject to clause 7.1, our total liability arising out of any one order is limited to the price paid for that order.

7.3 We are not liable for any loss arising from the fitting of goods by a third party, or from goods being used outside the manufacturer's stated limits.

## **8. Events outside our control**

8.1 We are not liable for a failure to perform caused by an event outside our reasonable control, including carrier failure, industrial action, and the interruption of supply from a manufacturer.

8.2 Where such an event continues for more than thirty days, either party may cancel the affected order and we will refund any sum paid for it.

## **9. Changes to these terms**

9.1 We may amend these terms. The version in force is the version published on the website at the moment your order is placed, and an amendment does not affect an order already accepted.

## **10. Governing law**

10.1 These terms are governed by the law of England and Wales, and the courts of England and Wales have exclusive jurisdiction.

10.2 Nothing in clause 10.1 deprives a consumer resident in the Republic of Ireland or in a member state of the European Union of the protection of the mandatory rules of the law of their own country of residence.